

An employer shall only be liable for punitive damages based on its employee's acts where the employer had advance knowledge of the employee's unfitness and employed him with a conscious disregard for the rights and safety of others or authorized or ratified the employee's wrongful conduct. (Civ. Code § 3294, subd. (b).) A corporate employer can be held liable for punitive damages under those rules if the advance knowledge or authorization or ratification was on the part of an officer, director, or managing agent. (*Ibid.*) Ratification generally occurs where the employer demonstrates an intent to adopt or approve behavior. (*College Hospital, supra*, 8 Cal.4th at p. 726.) Ratification in the corporate context requires actual knowledge of the conduct and its outrageous nature. (*Ibid.*)

Plaintiff has not sufficiently stated any cause of action and so has not stated any basis for punitive damages. Plaintiff has also not stated any cause of action that could support recovery of attorneys' fees.

Leave to Amend. Leave to amend should be allowed when a defect is capable of cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) The court finds that the identified defects with Plaintiff's causes of action for Civil Code section 1942.5 retaliation and unlawful business practices are capable of cure.

Conclusion. Defendants' demurrer is sustained with leave to amend with regard to Plaintiff's first and fourth causes of action.

Defendants' demurrer is sustained without leave to amend with regard to Plaintiff's second, third, fifth, and sixth causes of action.

Defendants' motion to strike is granted with leave to amend.

Plaintiff to file any amended pleading within thirty days of the date of this order.

SHONNA-LEIGH RIVES vs. FPI MANAGEMENT INC. and BECKIE MANAOIS
Case No. CU25-07160

Plaintiff's Motion for Preliminary Injunction

TENTATIVE RULING

Plaintiff SHONNA-LEIGH RIVES moves for a preliminary injunction against Defendants FPI MANAGEMENT INC. and BECKIE MANAOIS enjoining Defendants from initiating an unlawful detainer action against her.

Code of Civil Procedure section 527, subdivision (a) permits the issuance of a preliminary injunction at any time before judgment if a complaint or affidavits show that sufficient grounds exist. To obtain a preliminary injunction a plaintiff ordinarily must present

evidence of the irreparable injury or interim harm he will suffer if an injunction is not issued. (*Iloh v. Regents of University of California* (2023) 87 Cal.App.5th 513, 522.) The court evaluates the propriety of a preliminary injunction by weighing the likelihood that the moving party will ultimately prevail on the merits of their claim and the relative interim harm to the parties from the issuance or non-issuance of the injunction. (*Readylink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016.) A preliminary injunction is improper where harm may be fully compensated by damages. (*Tahoe Keys Property Owners' Assn. v. State Water Resources Control Board* (1994) 23 Cal.App.4th 1459, 1471.) An injunction is only appropriate when supported by evidence of a realistic prospect that the party enjoined intends to engage in the activity to be prohibited. (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.)

Plaintiff presents insufficient evidence of likely irreparable harm. Plaintiff speculates that Defendants may evict her due to the dispute between the parties over the correct amount of rent for her apartment. However, Plaintiff presents no evidence that eviction proceedings are likely. Further, Defendants are alleged to be the property managers of the complex where Plaintiff rents an apartment, not the owners. (Second Amended Complaint at 2:7-18.) They do not have the ability to initiate eviction proceedings against Plaintiff.

Further, Plaintiff does not demonstrate a probability of success on the merits of her complaint as the operative complaint is vulnerable to demurrer, as discussed in the court's separate analysis of Defendants' demurrer and motion to strike directed to the second amended complaint.

Plaintiff's motion for a preliminary injunction is denied.

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